

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2710

By: Ford

AS INTRODUCED

An Act relating to statewide radio systems; creating the Oklahoma Emergency Communications Act; defining terms; creating the Oklahoma Emergency Communications Authority; providing for membership; providing for the filling of vacancies and reaffirmation; prohibiting compensation; requiring employment of certain Executive Director; providing for funding of the Executive Director; stating Authority shall be subject to the Oklahoma Open Records Act and the Oklahoma Open Meeting Act; stating powers and duties of the Authority; creating the Oklahoma Emergency Communications Authority Revolving Fund; stating type of fund; stating purpose; authorizing expenditures; amending 62 O.S. 2021, Section 34.11.1, as amended by Section 1, Chapter 193, O.S.L. 2024 (62 O.S. Supp. 2024, Section 34.11.1), which relates to Chief Information Officer; requiring Chief Information Officer seek certain guidance and recommendations for purchases; amending 62 O.S. 2021, Section 34.20, which relates to the Information Services Division; modifying responsible agency; amending 63 O.S. 2021, Section 2862, as last amended by Section 146, Chapter 452, O.S.L. 2024 (63 O.S. Supp. 2024, Section 2862), which relates to definitions; defining terms; amending 63 O.S. 2021, Section 2864, as last amended by Section 7, Chapter 258, O.S.L. 2023 (63 O.S. Supp. 2024, Section 2864), which relates to powers and duties; modifying powers and duties of the Oklahoma 9-1-1 Management Authority; amending 74 O.S. 2021, Section 51.1a, as last amended by Section 2, Chapter 257, O.S.L. 2024 (74 O.S. Supp. 2024, Section 51.1a), which relates to interoperable public safety communications planning; modifying responsible agency requiring transfer of certain funds; repealing 62 O.S. 2021, Section 35.6.2, which relates to the Land

1 Mobile Radio Public Safety Interoperability
2 Cooperative; providing for codification; and
3 providing an effective date.
4

5 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

6 SECTION 1. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 2890 of Title 63, unless there
8 is created a duplication in numbering, reads as follows:

9 This act shall be known and may be cited as the "Oklahoma
10 Emergency Communications Act".

11 SECTION 2. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 2891 of Title 63, unless there
13 is created a duplication in numbering, reads as follows:

14 As used in the Oklahoma Emergency Communications Act:

15 1. "Authority" means the Oklahoma Emergency Communications
16 Authority;

17 2. "Director" means the Executive Director of the Oklahoma
18 Broadband Office;

19 3. "Executive Board" means a five member body that includes the
20 chair and vice chair of the Oklahoma Emergency Communications
21 Authority;

22 4. "FCC" means the Federal Communications Commission;

23 5. "Joint Executive Board" means a joint board comprised of the
24 executive board membership of the Oklahoma Emergency Communications

1 Authority and the Oklahoma 9-1-1 Management Authority as defined in
2 Section 2863 of Title 63 of the Oklahoma Statutes;

3 6. "Office" means the Oklahoma Emergency Communications Office;

4 7. "Revolving fund" means the Oklahoma Emergency Communications
5 Authority Revolving Fund.

6 SECTION 3. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 2892 of Title 63, unless there
8 is created a duplication in numbering, reads as follows:

9 A. There is hereby created the Oklahoma Emergency
10 Communications Authority which shall be the governing board
11 providing oversight, development and regulation of State Emergency
12 Communications Systems.

13 B. The Authority shall be composed of the following fourteen
14 (14) members:

15 1. Two members representing the Oklahoma Department of Public
16 Safety to be appointed by the Secretary of Public Safety;

17 2. One member representing the Oklahoma Department of
18 Transportation to be appointed by the Secretary of Transportation;

19 3. One member representing forestry and state fire response to
20 be appointed by the Oklahoma Commissioner of Agriculture;

21 4. One member representing the Office of Management and
22 Enterprise Services to be appointed by the Chief Information
23 Officer;

24

1 5. One member representing the State Department of Health to be
2 appointed by the Commissioner of Health;

3 6. One member representing a statewide organization dedicated
4 to representing municipal law enforcement to be appointed by the
5 President Pro Tempore of the Oklahoma State Senate;

6 7. One member representing a statewide organization dedicated
7 to representing county law enforcement to be appointed by the
8 Speaker of the Oklahoma House of Representatives;

9 8. One member representing a statewide organization dedicated
10 to representing fire service to be appointed by the Governor;

11 9. One member representing a statewide organization dedicated
12 to representing Oklahoma municipalities to be appointed by the
13 Speaker of the Oklahoma House of Representatives;

14 10. One member representing a statewide organization
15 representing Oklahoma county commissioners to be appointed by the
16 Governor;

17 11. One member representing a statewide organization
18 representing radio communications to be appointed by the President
19 Pro Tempore of the Oklahoma State Senate;

20 12. One member representing a statewide organization
21 representing emergency medical services to be appointed by the
22 Governor;

23 13. One member representing a city or county that owns radio
24 infrastructure and allows state users to utilize the system for day

1 to day operations, to be appointed by the Speaker of the Oklahoma
2 House of Representatives;

3 C. Members shall serve at the pleasure of their appointing
4 authority and vacancies shall be filled by the original appointing
5 authority. Each Authority member should be reaffirmed every two (2)
6 years from the date of the appointment

7 E. Members shall receive no compensation for serving on the
8 Authority.

9 F. The Joint Executive Board, as defined in Section 2 of this
10 act, shall employ, evaluate, and maintain an Executive Director of
11 the Office who shall serve at the pleasure of the Board and may be
12 removed or replaced without cause. Funding for the Executive
13 Director shall be split equally from the Oklahoma 9-1-1 Management
14 Authority Revolving Fund created in Section 2869 of Title 63 of the
15 Oklahoma Statutes and the Oklahoma Emergency Communications
16 Authority Revolving Fund created in Section 5 of this act.

17 G. The Authority shall be subject to the Oklahoma Open Records
18 Act and the Oklahoma Open Meeting Act.

19 SECTION 4. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 2894 of Title 63, unless there
21 is created a duplication in numbering, reads as follows:

22 The powers and duties of the Oklahoma Emergency Communications
23 Authority created in Section 3 of this act shall be to:

24

1 1. Approve or disapprove the selection of the Oklahoma
2 Emergency Communications Office deputy director by majority vote of
3 the members. The deputy director shall be an employee of the
4 Executive Director;

5 2. The Board shall promulgate rules as necessary to implement
6 the provisions of the Oklahoma Emergency Communications Act and for
7 the governance and operation of the Oklahoma Emergency
8 Communications Office;

9 3. Prepare grant solicitations for funding for the purposes of
10 assisting public agencies with funding to assist public agencies in
11 joining a state-owned shared system, this includes both
12 infrastructure and radio subscribers;

13 4. Oversee the annual budget for the Office, which shall be
14 approved by majority vote of the members;

15 5. Hold contracts necessary to administer and maintain the
16 emergency radio systems owned by the State of Oklahoma;

17 6. Work in conjunction with the Department of Public Safety and
18 Oklahoma Department of Transportation to move all funding, contracts
19 and personnel related to the state-owned radio infrastructure
20 including communication tower infrastructure to the Oklahoma
21 Emergency Communications Office within the two (2) years of the
22 approval of this act;

23 7. Establish comprehensive user training for the state-owned
24 radio systems;

- 1 8. Establish a strategic plan for the state radio system to
2 ensure optimal operability and interoperability for all public
3 safety responders in the state;
- 4 9. Provide guidance to public agencies pursuant to emergency
5 radio communications;
- 6 10. Establish rules for interoperability between state,
7 regional and local NG9-1-1 systems;
- 8 11. Facilitate information-sharing among public agencies;
- 9 12. Create and maintain best practices databases for radio
10 operations;
- 11 13. Facilitate the creation of policy and procedures between
12 state and local agencies related to radio communications;
- 13 14. Encourage equipment and technology sharing among all
14 jurisdictions;
- 15 15. Facilitate data operability and interoperability between
16 public safety systems;
- 17 16. Provide oversight of the programming of the systems and
18 radios, including any software or keys necessary to operate on the
19 state radio systems;
- 20 17. Recommend standards to become P25 compliant and other
21 common radio interoperability standards; and
- 22 18. Enable cost savings to the State of Oklahoma through
23 unification and enhancement of current land mobile radio public
24 safety systems.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2895 of Title 63, unless there is created a duplication in numbering, reads as follows:

There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Emergency Communications to be designated the "Oklahoma Emergency Communications Authority Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received through state appropriations or by the Oklahoma Tax Commission from fees designated for support of 9-1-1 emergency services. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Emergency Communications Office upon approval by the Oklahoma Emergency Communications Authority for the purpose of supporting the administration of the Oklahoma Emergency Communications Act. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 6. AMENDATORY 62 O.S. 2021, Section 34.11.1, as amended by Section 1, Chapter 193, O.S.L. 2024 (62 O.S. Supp. 2024, Section 34.11.1), is amended to read as follows:

Section 34.11.1. A. There is hereby created the position of Chief Information Officer who shall be appointed by the Governor. The Chief Information Officer, in addition to having authority over

1 the Information Services Division of the Office of Management and
2 Enterprise Services, shall also serve as Secretary of Information
3 Technology and Telecommunications or successor cabinet position and
4 shall have jurisdictional areas of responsibility related to
5 information technology and telecommunications systems of all state
6 agencies as provided for in state law. The salary of the Chief
7 Information Officer shall not be less than One Hundred Thirty
8 Thousand Dollars (\$130,000.00) or more than One Hundred Sixty
9 Thousand Dollars (\$160,000.00).

10 B. Any person appointed to the position of Chief Information
11 Officer shall meet the following eligibility requirements:

12 1. A baccalaureate degree in Computer Information Systems,
13 Information Systems or Technology Management, Business
14 Administration, Finance, or other similar degree;

15 2. A minimum of ten (10) years of professional experience with
16 responsibilities for management and support of information systems
17 and information technology, including seven (7) years of direct
18 management of a major information technology operation;

19 3. Familiarity with local and wide-area network design,
20 implementation, and operation;

21 4. Experience with data and voice convergence service
22 offerings;

23 5. Experience in developing technology budgets;
24

1 6. Experience in developing requests for proposal and
2 administering the bid process;

3 7. Experience managing professional staff, teams, and
4 consultants;

5 8. Knowledge of telecommunications operations;

6 9. Ability to develop and set strategic direction for
7 information technology and telecommunications and to manage daily
8 development and operations functions;

9 10. An effective communicator who is able to build consensus;

10 11. Ability to analyze and resolve complex issues, both logical
11 and interpersonal;

12 12. Effective verbal and written communications skills and
13 effective presentation skills, geared toward coordination and
14 education;

15 13. Ability to negotiate and defuse conflict; and

16 14. A self-motivator, independent, cooperative, flexible and
17 creative.

18 C. The salary and any other expenses for the Chief Information
19 Officer shall be budgeted as a separate line item through the Office
20 of Management and Enterprise Services. The operating expenses of
21 the Information Services Division shall be set by the Chief
22 Information Officer and shall be budgeted as a separate line item
23 through the Office of Management and Enterprise Services. The
24 Office of Management and Enterprise Services shall provide adequate

1 office space, equipment and support necessary to enable the Chief
2 Information Officer to carry out the information technology and
3 telecommunications duties and responsibilities of the Chief
4 Information Officer and the Information Services Division.

5 D. 1. Within twelve (12) months of appointment, the first
6 Chief Information Officer shall complete an assessment, which shall
7 be modified annually pursuant to Section 35.5 of this title, of the
8 implementation of the transfer, coordination, and modernization of
9 all information technology and telecommunication systems of all
10 state agencies in the state as provided for in the Oklahoma
11 Information Services Act. The assessment shall include the
12 information technology and telecommunications systems of all
13 institutions within The Oklahoma State System of Higher Education,
14 the Oklahoma State Regents for Higher Education and the
15 telecommunications network known as OneNet as assembled and
16 submitted by the Oklahoma Higher Education Chief Information
17 Officer, as designated by the Oklahoma State Regents for Higher
18 Education.

19 2. Within twelve (12) months of appointment, the first Chief
20 Information Officer shall issue a report setting out a plan of
21 action which will include the following:

- 22 a. define the shared service model organization structure
23 and the reporting relationship of the recommended
24 organization,

- b. the implementation of an information technology and telecommunications shared services model that defines the statewide infrastructure environment needed by most state agencies that is not specific to individual agencies and the shared applications that are utilized across multiple agencies,
- c. define the services that shall be in the shared services model under the control of the Information Services Division of the Office of Management and Enterprise Services,
- d. define the roadmap to implement the proposed shared services model. The roadmap shall include recommendations on the transfer, coordination, and modernization of all information technology and telecommunication systems of all the state agencies in the state,
- e. recommendations on the reallocation of information technology and telecommunication resources and personnel,
- f. a cost benefit analysis to support the recommendations on the reallocation of information technology and telecommunication resources and personnel,
- g. a calculation of the net savings realized through the reallocation and consolidation of information

1 technology and telecommunication resources and
2 personnel after compensating for the cost of
3 contracting with a private consultant as authorized in
4 paragraph 4 of this subsection, implementing the plan
5 of action, and ongoing costs of the Information
6 Services Division of the Office of Management and
7 Enterprise Services, and

8 h. the information required in subsection B of Section
9 35.5 of this title.

10 3. The plan of action report shall be presented to the
11 Governor, Speaker of the Oklahoma House of Representatives, and the
12 President Pro Tempore of the Oklahoma State Senate.

13 4. The Chief Information Officer may contract with a private
14 consultant or consultants to assist in the assessment and
15 development of the plan of action report as required in this
16 subsection.

17 E. The Chief Information Officer shall be authorized to employ
18 personnel, fix the duties and compensation of the personnel, not
19 otherwise prescribed by law, and otherwise direct the work of the
20 personnel in performing the function and accomplishing the purposes
21 of the Information Services Division of the Office of Management and
22 Enterprise Services.

1 F. The Information Services Division of the Office of
2 Management and Enterprise Services shall be responsible for the
3 following duties:

4 1. Formulate and implement the information technology strategy
5 for all state agencies;

6 2. Define, design, and implement a shared services statewide
7 infrastructure and application environment for information
8 technology and telecommunications for all state agencies;

9 3. Direct the development and operation of a scalable
10 telecommunications infrastructure that supports data and voice
11 communications reliability, integrity, and security;

12 4. Supervise the applications development process for those
13 applications that are utilized across multiple agencies;

14 5. Provide direction for the professional development of
15 information technology staff of state agencies and oversee the
16 professional development of the staff of the Information Services
17 Division of the Office of Management and Enterprise Services;

18 6. Evaluate all technology and telecommunication investment
19 choices for all state agencies;

20 7. Create a plan to ensure alignment of current systems, tools,
21 and processes with the strategic information technology plan for all
22 state agencies;

23 8. Set direction and provide oversight for the support and
24 continuous upgrading of the current information technology and

1 telecommunication infrastructure in the state in support of enhanced
2 reliability, user service levels, and security;

3 9. Direct the development, implementation, and management of
4 appropriate standards, policies and procedures to ensure the success
5 of state information technology and telecommunication initiatives;

6 10. Recruit, hire and transfer the required technical staff in
7 the Information Services Division of the Office of Management and
8 Enterprise Services to support the services provided by the Division
9 and the execution of the strategic information technology plan;

10 11. Establish, maintain, and enforce information technology and
11 telecommunication standards;

12 12. Delegate, coordinate, and review all work to ensure quality
13 and efficient operation of the Information Services Division of the
14 Office of Management and Enterprise Services;

15 13. Create and implement a communication plan that disseminates
16 pertinent information to state agencies on standards, policies,
17 procedures, service levels, project status, and other important
18 information to customers of the Information Services Division of the
19 Office of Management and Enterprise Services and provide for agency
20 feedback and performance evaluation by customers of the Division;

21 14. Develop and implement training programs for state agencies
22 using the shared services of the Information Services Division of
23 the Office of Management and Enterprise Services and recommend
24

1 training programs to state agencies on information technology and
2 telecommunication systems, products and procedures;

3 15. Provide counseling, performance evaluation, training,
4 motivation, discipline, and assign duties for employees of the
5 Information Services Division of the Office of Management and
6 Enterprise Services;

7 16. For all state agencies, approve the purchasing of all
8 information technology and telecommunication services and approve
9 the purchase of any information technology and telecommunication
10 product except the following:

11 a. a purchase less than or equal to Five Thousand Dollars
12 (\$5,000.00) if such product is purchased using a state
13 purchase card and the product is listed on either the
14 Approved Hardware or Approved Software list located on
15 the Office of Management and Enterprise Services
16 website, or

17 b. a purchase over Five Thousand Dollars (\$5,000.00) and
18 less than or equal to Twenty-five Thousand Dollars
19 (\$25,000.00) if such product is purchased using a
20 state purchase card, the product is listed on an
21 information technology or telecommunications statewide
22 contract, and the product is listed on either the
23 Approved Hardware or Approved Software list located on
24

1 the Office of Management and Enterprise Services
2 website;

3 17. Develop and enforce an overall infrastructure architecture
4 strategy and associated roadmaps for desktop, network, server,
5 storage, and statewide management systems for state agencies;

6 18. Effectively manage the design, implementation and support
7 of complex, highly available infrastructure to ensure optimal
8 performance, on-time delivery of features, and new products, and
9 scalable growth;

10 19. Define and implement a governance model for requesting
11 services and monitoring service level metrics for all shared
12 services; and

13 20. Create the budget for the Information Services Division of
14 the Office of Management and Enterprise Services to be submitted to
15 the Legislature each year.

16 G. The State Governmental Technology Applications Review Board
17 shall provide ongoing oversight of the implementation of the plan of
18 action required in subsection D of this section. Any proposed
19 amendments to the plan of action shall be approved by the Board
20 prior to adoption.

21 H. 1. The Chief Information Officer shall act as the
22 Information Technology and Telecommunications Purchasing Director
23 for all state agencies and shall be responsible for the procurement
24 of all information technology and telecommunication software,

1 hardware, equipment, peripheral devices, maintenance, consulting
2 services, high technology systems, and other related information
3 technology, data processing, telecommunication and related
4 peripherals and services for all state agencies. The Chief
5 Information Officer shall establish, implement, and enforce policies
6 and procedures for the procurement of information technology and
7 telecommunication software, hardware, equipment, peripheral devices,
8 maintenance, consulting services, high technology systems, and other
9 related information technology, data processing, telecommunication
10 and related peripherals and services by purchase, lease-purchase,
11 lease with option to purchase, lease and rental for all state
12 agencies. The procurement policies and procedures established by
13 the Chief Information Officer shall be consistent with The Oklahoma
14 Central Purchasing Act.

15 2. The Chief Information Officer, or any employee or agent of
16 the Chief Information Officer acting within the scope of delegated
17 authority, shall have the same power and authority regarding the
18 procurement of all information technology and telecommunication
19 products and services as outlined in paragraph 1 of this subsection
20 for all state agencies as the State Purchasing Director has for all
21 acquisitions used or consumed by state agencies as established in
22 The Oklahoma Central Purchasing Act. Such authority shall,
23 consistent with the authority granted to the State Purchasing
24 Director pursuant to Section 85.10 of Title 74 of the Oklahoma

1 Statutes, include the power to designate financial or proprietary
2 information submitted by a bidder confidential and reject all
3 requests to disclose the information so designated, if the Chief
4 Information Officer requires the bidder to submit the financial or
5 proprietary information with a bid, proposal, or quotation.

6 3. The Chief Information Officer or employee, pursuant
7 paragraph 2 of this subsection, shall seek guidance and
8 recommendations from the Oklahoma Emergency Communications Office
9 Executive Director for all purchases related to public safety
10 communications.

11 I. The Information Services Division of the Office of
12 Management and Enterprise Services and the Chief Information Officer
13 shall be subject to the Oklahoma Central Purchasing Act for the
14 approval and purchase of all equipment, products, and services and
15 shall also be subject to the requirements of the Public Competitive
16 Bidding Act of 1974, the Oklahoma Lighting Energy Conservation Act
17 and the Public Building Construction and Planning Act. The Chief
18 Information Officer shall be authorized to delegate all or some of
19 the procurement of information technology and telecommunication
20 products and services and construction of facilities and
21 telecommunication networks to another state entity if the Chief
22 Information Officer determines it to be cost-effective and in the
23 best interest of the state. The Chief Information Officer shall
24 have authority to designate information technology and

1 telecommunication contracts as statewide contracts and mandatory
2 statewide contracts pursuant to Section 85.5 of Title 74 of the
3 Oklahoma Statutes and to negotiate consolidation contracts,
4 enterprise agreements and high technology systems contracts. Any
5 contract entered into by a state agency for which the Chief
6 Information Officer has not acted as the Information Technology and
7 Telecommunications Purchasing Director as required in this
8 subsection or subsection H of this section, shall be deemed to be
9 unenforceable and the Office of Management and Enterprise Services
10 shall not process any claim associated with the provisions thereof.

11 J. The Chief Information Officer shall establish, implement,
12 and enforce policies and procedure for the development and
13 procurement of an interoperable radio communications system for
14 state agencies. The Chief Information Officer shall work with local
15 governmental entities in developing the interoperable radio
16 communications system.

17 K. The Chief Information Officer shall develop and implement a
18 plan to utilize open source technology and products for the
19 information technology and telecommunication systems of all state
20 agencies.

21 L. All state agencies and authorities of this state and all
22 officers and employees of those entities shall work and cooperate
23 with and lend assistance to the Chief Information Officer and the
24 Information Services Division of the Office of Management and

1 Enterprise Services and provide any and all information requested by
2 the Chief Information Officer.

3 M. The Chief Information Officer shall prepare an annual report
4 detailing the ongoing net saving attributable to the reallocation
5 and consolidation of information technology and telecommunication
6 resources and personnel and shall submit the report to the Governor,
7 the Speaker of the Oklahoma House of Representatives, and the
8 President Pro Tempore of the Oklahoma State Senate.

9 N. For purposes of the Oklahoma Information Services Act,
10 unless otherwise provided for, "state agencies" shall include any
11 office, officer, bureau, board, commission, counsel, unit, division,
12 body, authority or institution of the executive branch of state
13 government, whether elected or appointed; provided, except with
14 respect to the provisions of subsection D of this section, the term
15 "state agencies" shall not include institutions within The Oklahoma
16 State System of Higher Education, the Oklahoma State Regents for
17 Higher Education and the telecommunications network known as OneNet.

18 O. As used in this section:

19 1. "High technology system" means advanced technological
20 equipment, software, communication lines, and services for the
21 processing, storing, and retrieval of information by a state agency;

22 2. "Consolidation contract" means a contract for several state
23 or public agencies for the purpose of purchasing information
24 technology and telecommunication goods and services; and

1 3. "Enterprise agreement" means an agreement for information
2 technology or telecommunication goods and services with a supplier
3 who manufactures, develops and designs products and provides
4 services that are used by one or more state agencies.

5 SECTION 7. AMENDATORY 62 O.S. 2021, Section 34.20, is
6 amended to read as follows:

7 Section 34.20. In addition to the powers and duties as defined
8 elsewhere in this title, the Information Services Division of the
9 Office of Management and Enterprise Services shall:

10 1. Coordinate statewide planning and approve statewide
11 contracts for communication and telecommunications needs of state
12 agencies, including, but not limited to, voice, data, radio
13 including the interoperable radio communications system for state
14 agencies, video, broadband, Wi-Fi or wireless networking, Global
15 Positioning Systems (GPS), Internet, eGovernment, as referenced in
16 Sections 34.24 and 34.25 of this title, and facsimile transmissions
17 through analysis of the telecommunications and information
18 technology plan of each agency;

19 2. In coordination with the Oklahoma Emergency Communications
20 ~~Office of Homeland Security~~, establish minimum mandatory standards
21 and protocols for:

- 22 a. communication networks and equipment,
- 23 b. wide area and local area systems,
- 24 c. integration of equipment, systems and joint usage,

- d. Internet and eGovernment,
- e. operating systems or methods to be used to meet communications requirements efficiently, effectively, and securely,
- f. rendering of aid between state government and its political subdivisions with respect to organizing of communications systems, and
- g. an economical and cost-effective utilization of communication services.

The standards and protocols shall be compatible with the standards and protocols established for the Oklahoma Government Telecommunications Network;

3. Serve as a focal point for all statewide projects and approve all statewide contracts for state agencies involving current communications vendors where the focus of such authority can substantially enhance the state communications plan or the savings which can be achieved thereunder;

4. Provide, when requested by political subdivisions of the state, for the organizing of communications or telecommunications systems and service between the state and its political subdivisions and enter into agreements to effect the purposes of this section;

5. Cooperate with any federal, state or local emergency management agency in providing for emergency communications and telecommunication services;

1 6. Apply for, receive, and hold, or assist agencies in applying
2 for, receiving or holding such authorizations, licenses and
3 allocations of channels and frequencies to carry out the purposes of
4 this section;

5 7. Accomplish such other purposes as may be necessary or
6 incidental to the administration of its authority or functions
7 pursuant to law; and

8 8. Provide support for telecommunication networks of state
9 agencies through analysis of the telecommunications needs and
10 requirements of each agency and promotion of the use of the Oklahoma
11 Government Telecommunications Network.

12 SECTION 8. AMENDATORY 63 O.S. 2021, Section 2862, as
13 last amended by Section 146, Chapter 452, O.S.L. 2024 (63 O.S. Supp.
14 2024, Section 2862), is amended to read as follows:

15 Section 2862. As used in the Oklahoma 9-1-1 Management
16 Authority Act:

17 1. "Area served" means the geographic area which shall be
18 served by the 9-1-1 emergency telephone service provided by the
19 governing body of a county, municipality, part of a county or
20 combination of such governing bodies;

21 2. "Authority" means the Oklahoma 9-1-1 Management Authority
22 created in Section 2863 of this title;

23 3. "Emergency telephone service" means any telephone system
24 utilizing a three-digit number, nine-one-one (9-1-1), for reporting

1 an emergency to the appropriate public agency providing law
2 enforcement, fire, medical or other emergency services, including
3 ancillary communications systems and personnel necessary to pass the
4 reported emergency to the appropriate emergency service and
5 personnel;

6 4. "Emergency telephone fee" means a fee to finance the
7 operation of emergency telephone service;

8 5. "Governing body" means the board of county commissioners of
9 a county, the city council, tribal authority or other governing body
10 of a municipality, or a combination of such boards, councils or
11 other municipal governing bodies including county or municipal
12 beneficiary public trusts, or other public trusts which shall have
13 an administering board;

14 6. "Landline telecommunications connection" means a ten-digit
15 access number assigned to a customer that utilizes analog
16 communications over a wired transmission line that travels
17 underground or on telephone poles;

18 7. "Local exchange telephone company" means any company
19 providing exchange telephone services to any service user in this
20 state, and shall include any competitive local exchange carrier as
21 defined in Section 139.102 of Title 17 of the Oklahoma Statutes;

22 8. "Next-generation 9-1-1" or "NG9-1-1" means an:

- 23 a. IP-based system comprised of hardware, software, data,
24 and operational policies and procedures that:

- (1) provides standardized interfaces from emergency call and message services to support emergency communications,
- (2) processes all types of emergency calls, including voice, text, data and multimedia information,
- (3) acquires and integrates additional emergency call data useful to call routing and handling,
- (4) delivers the emergency calls, messages and data to the appropriate public safety answering point and other appropriate emergency entities,
- (5) supports data or video communications needs for coordinated incident response and management, and
- (6) provides broadband service to public safety answering points or other first responder entities, or

b. IP-based system comprised of hardware, software, data and operational policies and procedures that conforms with subsequent amendments made to the definition of Next Generation 9-1-1 services in Public Law 112-96;

9. "9-1-1 emergency telephone service" means any telephone system whereby telephone subscribers may utilize a three-digit number (9-1-1) for reporting an emergency to the appropriate public agency providing law enforcement, fire, medical or other emergency services, including ancillary communications systems and personnel

1 necessary to pass the reported emergency to the appropriate
2 emergency service and which the wireless service provider is
3 required to provide pursuant to the Federal Communications
4 Commission Order 94-102 (961 Federal Register 40348);

5 10. "9-1-1 wireless telephone fee" means the fee imposed in
6 Section 2865 of this title to finance the installation and operation
7 of emergency 9-1-1 services and any necessary equipment;

8 11. "Person" means any service user, including, but not limited
9 to, any individual, firm, partnership, co-partnership, joint
10 venture, association, cooperative organization, private corporation,
11 whether organized for profit or not, fraternal organization,
12 nonprofit organization, estate, trust, business or common law trust,
13 receiver, assignee for the benefit of creditors, trustee or trustee
14 in bankruptcy, the United States of America, the state, any
15 political subdivision of the state, or any federal or state agency,
16 department, commission, board or bureau;

17 12. "Place of primary use" means the street address
18 representative of where the use of the mobile telecommunications
19 service of the customer primarily occurs, which shall be the
20 residential street address or the primary business street address of
21 the customer and shall be within the licensed service area of the
22 home service provider in accordance with Section 55001 of Title 68
23 of the Oklahoma Statutes and the federal Mobile Telecommunications
24 Sourcing Act, P.L. No. 106-252, codified at 4 U.S.C. 116-126;

1 13. "Prepaid wireless telecommunications service" means a
2 telecommunications wireless service that provides the right to
3 utilize mobile wireless service as well as other telecommunications
4 services including the download of digital products delivered
5 electronically, content and ancillary services, which are paid for
6 in advance and sold in predetermined units or dollars of which the
7 number declines with use in a known amount;

8 14. "Proprietary information" means wireless service provider
9 or VoIP service provider, subscriber, market share, cost and review
10 information;

11 15. "Public agency" means any city, town, county, municipal
12 corporation, public district, public trust, substate planning
13 district, public authority or tribal authority located within this
14 state which provides or has authority to provide firefighting, law
15 enforcement, ambulance, emergency medical or other emergency
16 services;

17 16. "Public safety answering point" or "PSAP" means an entity
18 responsible for receiving 9-1-1 calls and processing those calls
19 according to specific operational policy;

20 17. "Public safety telecommunicator" means a person who
21 performs a public service by processing, analyzing, and dispatching
22 calls for emergency assistance. The person is a first responder
23 that provides pre-arrival instructions and has specialized training
24 to mitigate the loss of life and property;

1 18. "Service user" means any person who is provided exchange
2 telephone service in this state;

3 19. "Tariff rate" means the rate or rates billed by a local
4 exchange telephone company stated in tariffs applicable for such
5 company, as approved by the Oklahoma Corporation Commission, or the
6 current equivalent of such rates, which represent the recurring
7 charges of such local exchange telephone company for exchange
8 telephone service or its equivalent, exclusive of all taxes, fees,
9 licenses or similar charges whatsoever;

10 20. "Wireless service provider" means a provider of commercial
11 mobile service under Section 332(d) of the Telecommunications Act of
12 1996, 47 U.S.C., Section 151 et seq., Federal Communications
13 Commission rules, and the Omnibus Budget Reconciliation Act of 1993,
14 Pub. L. No. 103-66, and includes a provider of wireless two-way
15 communication service, radio-telephone communications related to
16 cellular telephone service, network radio access lines or the
17 equivalent, and personal communication service. The term does not
18 include a provider of:

- 19 a. a service whose users do not have access to 9-1-1
20 service,
- 21 b. a communication channel used only for data
22 transmission, or
- 23 c. a wireless roaming service or other nonlocal radio
24 access line service;

1 21. "Wireless telecommunications connection" means the ten-
2 digit access number assigned to a customer regardless of whether
3 more than one such number is aggregated for the purpose of billing a
4 service user; ~~and~~

5 22. "Voice over Internet Protocol (VoIP) provider" means a
6 provider of interconnected Voice over Internet Protocol service to
7 end users in the state, including resellers;

8 23. "Executive Board" means a five member body that includes
9 the chair and vice chair of the Oklahoma 9-1-1 Management Authority;
10 and

11 24. "Joint Executive Board" means a joint board comprised of
12 the executive board membership of the Oklahoma 9-1-1 Management
13 Authority and the Oklahoma Emergency Communications Authority as
14 defined in Section 2 of this act.

15 SECTION 9. AMENDATORY 63 O.S. 2021, Section 2864, as
16 last amended by Section 7, Chapter 258, O.S.L. 2023 (63 O.S. Supp.
17 2024, Section 2864), is amended to read as follows:

18 Section 2864. The powers and duties of the Oklahoma 9-1-1
19 Management Authority created in Section 2863 of this title shall be
20 to:

21 1. Employ, evaluate and maintain an Executive Director at the
22 Oklahoma Emergency Communications Office, pursuant to its role in
23 the Joint Executive Board, as defined in Section 8 of this act. The
24 Executive Director of the Office shall serve at the pleasure of the

1 Joint Executive Board and may be removed or replaced without cause.
2 Funding of the Executive Director of the Office shall be split
3 equally from the Oklahoma 9-1-1 Management Authority Revolving Fund
4 created in Section 2869 of this title and the Oklahoma Emergency
5 Communications Authority Revolving Fund created in Section 5 of this
6 act;

7 2. Approve or disapprove the selection of the Oklahoma 9-1-1
8 ~~Coordinator~~ Deputy Director by majority vote of the members. The
9 ~~Authority shall direct the Oklahoma 9-1-1 Coordinator to administer~~
10 ~~grants approved by the Authority pursuant to this section and~~
11 ~~perform other duties as it deems necessary to accomplish the~~
12 ~~requirements of the Oklahoma 9-1-1 Management Authority Act~~ Deputy
13 Director shall be an employee of the Director;

14 ~~2.~~ 3. Prepare grant solicitations for funding for the purposes
15 of assisting public agencies with funding for consolidation of
16 facilities or services, deployment of Phase II technology or
17 successor technology, development of next-generation 9-1-1 regional
18 emergency service networks, and for other purposes it deems
19 appropriate and necessary;

20 ~~3.~~ 4. Work in conjunction with the Oklahoma Department of
21 Emergency Management ~~and Homeland Security~~ to create an annual
22 budget for the Authority, which shall be approved by majority vote
23 of the members;

1 ~~4.~~ 5. Direct the Oklahoma Tax Commission to escrow all or any
2 portion of funds collected pursuant to the Oklahoma 9-1-1 Management
3 Authority Act attributable to a public agency, if the public agency
4 fails to:

- 5 a. submit or comply with master plans to deliver Next
6 Generation 9-1-1 (NG9-1-1) services as required by the
7 Oklahoma 9-1-1 Management Authority Act and approved
8 by the Authority. Local plans must align with the
9 State's Master plan to deploy NG9-1-1,
- 10 b. meet standards of the National Emergency Number
11 Association (NENA) limited to call-taking and caller-
12 location technology or comply with an improvement plan
13 to meet such standards as directed by the Authority,
- 14 c. submit annual reports or audits as required by the
15 Oklahoma 9-1-1 Management Authority Act,
- 16 d. provide connectivity and interoperability between
17 state, regional and local next-generation systems, or
- 18 e. comply with the requirements of the Oklahoma 9-1-1
19 Management Authority Act or procedures established by
20 the Authority;

21 ~~5.~~ 6. Establish and submit to the Tax Commission a list of
22 eligible governing bodies entitled to receive 9-1-1 telephone fees
23 and establish annual population figures and square miles for the
24 coverage area of the public safety answering points (PSAPs) for the

1 purpose of distributing fees collected pursuant to Section 2865 of
2 this title. Distribution of the net monthly revenue from 9-1-1 fees
3 after the distributions established in Sections 2865, 2866, and 2867
4 of this title will be provided to eligible governing bodies
5 established by this section as follows:

6 a. a flat rate of Three Thousand Dollars (\$3,000.00) per
7 month per PSAP, and

8 b. from the remaining balance:

9 (1) ten percent (10%) to be derived by dividing the
10 land area covered by each public agency's
11 response area by the total land area of the
12 state, and

13 (2) ninety percent (90%) to be derived by dividing
14 the population of each public agency's response
15 area by the total population of the state using
16 data from the latest available Census estimates
17 as of July 1 of each year;

18 ~~6.~~ 7. Assist any public agency the Authority determines is
19 performing below NENA standards, as limited by paragraph 4 of this
20 section, according to the improvement plan required by the Oklahoma
21 9-1-1 Management Authority Act. The Authority shall establish a
22 time period for the public agency to come into compliance after
23 which the Authority shall escrow funds as authorized in this
24 section. Improvement plans may include consideration and

1 recommendations for consolidation with other public agencies, and
2 sharing equipment and technology with other jurisdictions;

3 ~~7.~~ 8. Require an annual report from public agencies regarding
4 operations and financing of the public safety answering point (PSAP)
5 and approve, modify or reject such reports;

6 ~~8.~~ 9. Conduct and review audits and financial records of the
7 wireless service providers and review public agencies' audits and
8 financial records regarding the collection, remittance and
9 expenditures of 9-1-1 wireless telephone fees as required by the
10 Oklahoma 9-1-1 Management Authority Act;

11 ~~9.~~ 10. Develop a master plan to deploy next-generation 9-1-1
12 services statewide. This will include the development of
13 performance criteria critical to the function and performance of
14 NG9-1-1 networks and systems;

15 ~~10.~~ 11. Establish rules for interoperability between state,
16 regional and local NG9-1-1 systems;

17 ~~11.~~ 12. Facilitate information-sharing among public agencies;

18 ~~12.~~ 13. Create and maintain best practices databases for PSAP
19 operations;

20 ~~13.~~ 14. Encourage equipment- and technology-sharing among all
21 jurisdictions;

22 ~~14.~~ 15. Develop training program standards for public safety
23 telecommunicators for call taking. Training program standards shall
24 include instruction on recognizing the need for and delivery of

1 High-Quality Telecommunicator CPR (T-CPR) that can be delivered by
2 9-1-1 public safety telecommunicators for acute events requiring CPR
3 including, but not limited to, out-of-hospital cardiac events
4 (OHCA);

5 ~~15.~~ 16. Mediate disputes between public agencies and other
6 entities involved in providing 9-1-1 emergency telephone services;

7 ~~16.~~ 17. Provide a clearinghouse of contact information for
8 communications service companies and PSAPs operating in this state;

9 ~~17.~~ 18. Make recommendations for consolidation upon the request
10 of public agencies;

11 ~~18.~~ 19. Establish contracts for the necessary equipment and
12 services to deliver 9-1-1 calls to the public safety answering
13 points;

14 ~~19.~~ 20. Establish an eligible use list for 9-1-1 funds; and

15 ~~20.~~ 21. Take any steps necessary to carry out the duties
16 required by the Oklahoma 9-1-1 Management Authority Act.

17 SECTION 10. AMENDATORY 74 O.S. 2021, Section 51.1a, as
18 last amended by Section 2, Chapter 257, O.S.L. 2024 (74 O.S. Supp.
19 2024, Section 51.1a), is amended to read as follows:

20 Section 51.1a. A. In addition to the powers and duties as
21 defined elsewhere in statute, the Oklahoma Emergency Communications
22 ~~Office of Homeland Security~~ has the duty and responsibility for
23 interoperable public safety communications planning within this
24

1 state. As part of this duty the Oklahoma Emergency Communications
2 ~~Office of Homeland Security~~ shall:

3 1. Annually develop and electronically report to the Governor,
4 President Pro Tempore of the Oklahoma State Senate, and Speaker of
5 the Oklahoma House of Representatives, the Statewide Communications
6 Interoperability Plan;

7 2. Coordinate statewide planning for public safety
8 communication needs of state government and state emergency
9 responders, including a migration plan for state agency use of
10 public safety communications technologies and rendering of aid
11 between state government and its political subdivisions for
12 organizing and use of disparate public safety communications
13 systems;

14 3. Serve as a focal point for all state-level projects
15 involving public safety communications vendors where the focus of
16 such authority can substantially enhance the state communications
17 plan or savings;

18 4. Apply for, receive and hold, or assist state agencies in
19 applying for, receiving or holding such authorizations, licenses,
20 and allocations of channels and frequencies to carry out the
21 purposes of this section;

22 5. Establish minimum standards and protocols for acquisition,
23 development, or enhancement of public safety communications
24 technologies. These standards shall be utilized by the Information

1 Services Division of the Office of Management and Enterprise
2 Services pursuant to the provisions of Section 34.20 of Title 62 of
3 the Oklahoma Statutes; and

4 6. Accomplish such other purposes as may be necessary or
5 incidental to the administration of its authority or functions
6 pursuant to law.

7 B. It is the intent of the Legislature that all state public
8 entities comply with the provisions of the Statewide Communications
9 Interoperability Plan issued by the Oklahoma Emergency
10 Communications Office ~~of Homeland Security~~. All state agencies are
11 required to review the provisions of the Statewide Communications
12 Interoperability Plan and the public safety communications standards
13 issued by the Oklahoma Emergency Communications Office ~~of Homeland~~
14 ~~Security~~ prior to the purchase, acquisition, development, or
15 enhancement of any public safety communications system. Local
16 public safety agencies and political subdivisions of the state are
17 encouraged, but not required, to review the provisions of the
18 Statewide Communications Interoperability Plan and the public safety
19 communications standards issued by the Oklahoma Emergency
20 Communications Office ~~of Homeland Security~~ prior to the purchase,
21 acquisition, development, or enhancement of any public safety
22 communications system to assist the local public safety agency or
23 political subdivision in purchasing decisions.

1 C. Any existing or future federal or state funding allocated for
2 the purpose of public safety communications operability,
3 interoperability, radio infrastructure, radio subscribers shall be
4 transferred from the Oklahoma Homeland Security Revolving Fund
5 created in Section 51.2 of this title to the Oklahoma Emergency
6 Communications Authority Revolving Fund created in Section 5 of this
7 act.

8 D. No state agency shall use state funds or enter into any
9 agreement for the acquisition, development, or enhancement of a
10 public safety communication system unless the request is consistent
11 with the Statewide Communications Interoperability Plan and the
12 public safety communications standards issued by the Oklahoma
13 Emergency Communications Office ~~of Homeland Security~~.

14 SECTION 11. REPEALER 62 O.S. 2021, Section 35.6.2, is
15 hereby repealed.

16 SECTION 12. This act shall become effective November 1, 2025.

17
18 60-1-11553 JBH 12/28/24
19
20
21
22
23
24